

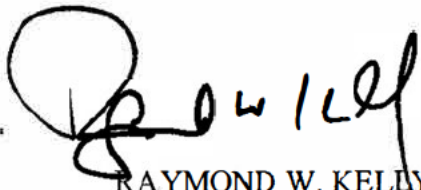


POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Dante Thomas : ORDER
Tax Registry No. 935839 : OF
Housing Borough Brooklyn North : DISMISSAL
-----X

Police Officer Dante Thomas, Tax Registry No. 935839, Shield No. 5721, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 84530/08 as set forth on form P.D. 468-121, dated September 18, 2008, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Dante Thomas from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: 01/27/2010 @ 2400HRS



POLICE DEPARTMENT

November 30, 2009

-----X
In the Matter of the Charges and Specifications : Case No. 84530/08

- against - :

Police Officer Dante Thomas :

Tax Registry No. 935839 :

Housing Borough Brooklyn North :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department:

Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Paul P. Martin, Esq.
Preston, Wilkins, Martin, & Rodriguez, P.L.L. C.
65 Broadway, Suite 508
New York, NY 10006

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

The above-named member of the Department appeared before me on September 1, 2009, charged with the following:

1. Said Police Officer Dante Thomas, assigned to OCCB, while off-duty on or about May 4, 2008, at a location known to the Department, stole property, to wit: said Police Officer did wrongfully take a camera from an individual identity known to the Department without permission or authority.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT
N.Y.S. Penal Law Section 155.25 -- PETIT LARCENY

2. Said Police Officer Dante Thomas, assigned as indicated in Specification #1, on or about May 4, 2008, having been involved in a police incident, did thereafter fail and neglect to report said incident to his Commanding Officer, as required.

P.G. 212-34, Page 1, Paragraph 4 POLICE INCIDENT

3. Said Police Officer Dante Thomas, assigned as indicated in Specification #1, on or about May 4, 2008, did wrongfully and without just cause prevent or interfere with an official New York Port Authority investigation, to wit: said Police Officer stated to a New York Port Authority Police Officer that he had returned a camera to an employee at Burger King when in fact he had thrown said camera in the trash.

P.G. 203-10, Page 1, Paragraph 2(D) & Paragraph 3 PUBLIC CONTACT-
PROHIBITED CONDUCT

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty.

Introduction

It is not disputed that on the morning of May 4, 2008, the Respondent and his then-fiancee Police Officer Angelina Lebron (who hereinafter will be referred to as "Thomas" since she has married the Respondent and changed her name to Angelina Thomas) were off duty inside the Delta Airlines (Delta) terminal at John F. Kennedy International Airport (JFK) waiting to board a Delta flight to the Dominican Republic.

The Respondent and Thomas entered a Burger King restaurant located inside the terminal, ordered food and paid for their food at the cashier's counter. The Respondent picked up a camera that had been left on the cashier's counter by a man whose last name the Respondent later learned was Negm. The Respondent left the Burger King restaurant in possession of Negm's camera.

The Department's Case

The Department called Waleed Negm, Evelyn O'Loughlin, Cavel Malcolm, Port Authority Police Officer Christopher Rogers, Olba Kovacs, Sergeant Lyndon Tuckett and Police Officer Angelina Thomas as witnesses.

Waleed Negm

Waleed Negm, who is employed by Intelligent Decisions, a security company, as director of recruiting, testified that he resides in [REDACTED] and that on May 4, 2008, he was at JFK to catch an 8:00 a.m. flight to Baltimore-Washington International Airport. Negm recalled that he entered the Burger King restaurant at the terminal to purchase some food. When he was at the counter to pay for his food, he placed his camera, his

blackberry, and his keys on the counter so he could dig into his wallet for cash. After he paid for the food, he put the items back into his wallet and walked out of the restaurant toward his boarding gate. He then realized that he had left his camera on the counter at Burger King. He ran back to the restaurant, but his camera was not on the counter. He asked a female Burger King employee if she had seen his camera and she told him "your friend has it and is going to bring it to you." Negm concluded that someone had stolen the camera.

As he started walking back to his boarding gate, two women approached him and told him that they had seen a man take the camera off the counter. The two women pointed at a black man who was seated nearby. Negm approached this man, who he identified in the trial room as the Respondent, and asked him if he had taken his camera. Negm testified that the Respondent told him that he had left the camera with a Burger King employee. Negm then returned to the Burger King restaurant and asked if someone had returned his camera but all the employees he spoke to responded in the negative. Negm then approached the Respondent a second time. The Respondent told him that he had left the camera on the counter at Burger King.

Negm testified that he then approached a transportation safety administration agent who contacted the Port Authority police. A Port Authority Police Officer who identified himself as Officer Rogers responded and Negm told him what had happened. The Respondent was seated about 20 feet away from them. Officer Rogers approached the Respondent, spoke to him and then reported to Negm that he did not have his camera.

Negm asked Delta personnel if they could search the area to see if they could find his camera. Negm testified that an airline attendant at the gate that the Respondent

entered to get on his flight found the camera in a trash can and returned it to Negm.

Negm then boarded his flight to Baltimore-Washington International Airport.

On cross examination, Negm testified that when he walked out of Burger King, he was not walking at a fast pace. He had walked only about 15 to 20 feet outside of the Burger King when he realized that he might have left his camera on the counter. He testified that he patted all of his pockets to ensure that he had not placed the camera in one of his pockets. This took about 30 seconds. He then returned directly to the cashier's counter. The two women who pointed out the Respondent to him walked with him toward the Respondent and pointed at the Respondent who was sitting on a chair.

Negm testified that he was walking fast when he approached the Respondent for the first time and that his first words to the Respondent were, "Thank you for finding my camera. May I have it back?" Negm recalled that a woman was with the Respondent. Negm reiterated that the Respondent told him that he left the camera with a female employee at Burger King. Negm testified that he ran back to Burger King and asked to speak to the manager. The manager told him that no one had turned in a camera.

He then ran back to where the Respondent was seated and told the Respondent that he had spoken with the manager at Burger King and that no camera had been turned in. Negm recalled that he then asked the Respondent, "What did you do with it?" The Respondent told him that he had left the camera at the counter. Negm again ran back to Burger King again and asked the employees there whether anyone had left a camera on the counter. One employee told him, "He took it with him."

Negm testified that when Officer Rogers approached the Respondent, he followed Officer Rogers closely. Negm testified that because he was right behind Officer Rogers,

he heard the conversation between Officer Rogers and the Respondent. He recalled that Officer Rogers asked the Respondent, "Where's the camera?" The Respondent answered, "I told him that I left it at Burger King."

Negm was confronted with an interview that was conducted by Sergeant Lyndon Tuckett on May 15, 2008, in which Negm stated, "I found the camera." Negm explained that when he made this statement he meant that "we recovered it," not that he had personally found the camera in the trash can.

Negm was also confronted with a statement he made to Lieutenant Shawn Allen on May 30, 2008, that if he was going to appear as a witness at the Respondent's trial he wanted to be compensated for his time and he wanted to be reimbursed for his travel expenses. Negm testified that he had no recollection of requesting to be compensated for his time but that he may have said this. Negm recalled that when Officer Rogers was speaking to the Respondent, Rogers turned to him and showed him a camera that the Respondent had pulled out of a carry-on type bag. Negm told Rogers that it was not his camera.

Evelyn O'Loughlin

Evelyn O'Loughlin, who is a third year student at York College, testified that during May, 2008 she was employed at the Burger King located at the Delta Airlines Terminal at JFK.

She recalled that on May 4, 2008, at about 8:00 a.m., she was busy at the counter handing out food orders. She did not notice that a camera was on the counter until "a guy picked up the camera." O'Loughlin recalled asking the man, "Is it yours?" When the

man responded "No," she told him that he should "give it to the manager." She recalled that the man responded, "No. I'm going to bring it to the person who left it." Shortly after that, another man came to the counter and told her that he had left a camera there. O'Loughlin told the man "a guy went off with it and that he had left."

O'Loughlin recalled that this same man came back about 15 minutes later and asked if anyone had brought the camera back.

On cross-examination, O'Loughlin testified that she never told the man who had left his camera that his "friend" had taken it to bring to him. She recalled that the man was upset and frantic, but that he was not loud. O'Loughlin could not identify the Respondent in the trial room as the man who had taken the camera and told her that he was going to bring it to the person who had left it.

Cavel Malcolm

Malcolm, who resides in [REDACTED] testified that she is the food and beverage manager of six restaurants at JFK including Burger King and that on May 4, 2008, at about 8:00 a.m., "Evelyn," a Burger King employee, approached her accompanied by a man whose name she later learned was Negm. He asked if anyone had turned in a camera. When Malcolm responded that no one had turned in a camera, Negm left.

He returned minutes later and told Malcolm that he wanted to report a missing camera. Malcolm immediately telephoned the Port Authority Police who responded within minutes and left with Negm.

Port Authority Police Officer Christopher Rogers

Officer Christopher Rogers, who has been employed as a police officer with the Port Authority of New York and New Jersey (PANY&NJ) for the past 24 years, testified that on May 4, 2008, he was assigned to JFK on foot patrol inside the Delta terminal. His scheduled tour was 6:00 a.m. to 2:00 p.m. He recalled that about 8:00 a.m., he received a radio transmission that a complainant named Waleed Negm was at the Gate 4 screening area. Rogers met Negm and interviewed him about the loss of his camera. They then walked together to the Gate 10 waiting area where Negm pointed at a man. Rogers approached the man and asked him, "Where is the camera?" Rogers recalled that the Respondent told him, "Yes, I took the camera, but I left it with the manager at Burger King." The Respondent then identified himself to Rogers as a New York City police officer and complied with Rogers' request to display his Department ID card. Rogers told the Respondent, "Stay here."

Rogers walked to Burger King where Cavel Malcolm told him that no one had turned in a camera. Rogers then walked back to Gate 10 accompanied by his sergeant and another Port Authority police officer. When they arrived at Gate 10, the Respondent had already boarded his flight. Rogers entered the boarding area and told Delta personnel that the Respondent had to exit the airplane. The Respondent was required to remove the contents of his pockets and his carry-on bag. Soon thereafter, Rogers observed Olga Kovacs, a Delta employee, pull a camera out of garbage that had been removed from a trash receptacle. Rogers was present when Kovacs showed Negm the camera she had removed from the trash. When she asked him if it was his camera, he responded in the affirmative and took possession of the camera.

Rogers testified that he prepared a PANY&NJ police criminal complaint report documenting Negm's complaint that the Respondent had stolen his camera [Department's Exhibit (DX) 1]. [Inside box 56, which is labeled "Distinctive words used by suspect," Rogers wrote that that the Respondent told him: "I put the camera on the counter for the manager."]

On cross-examination, Rogers recalled that Negm had told him that the camera was worth \$500. Rogers confirmed that no camera was found inside either the Respondent's carry-on bag or inside Thomas' carry-on bag which were searched when they were taken off the aircraft.

Olga Kovacs

Olga Kovacs, who is employed as a customer service agent for Delta Airlines, testified that on May 4, 2008, she worked a shift that started at 5:00 a.m. and ended at 1:30 p.m. She recalled at about 8:00 a.m. on that day, Port Authority police officers were present at Gate 10. A man asked her if she could help look for his camera. Kovacs testified that she checked seven to ten garbage containers that were located near Gate 10. She opened one of the garbage bags that she had pulled out of a trash container and found a camera which she then handed to the man.

On cross-examination, Kovacs testified that four other Delta boarding gates are nearby Gate 10.

Sergeant Lyndon Tuckett

Sergeant Lyndon Tuckett, who is assigned to Internal Affairs Bureau (IAB) Group 12, testified that he conducted an official Department interview of the Respondent

regarding this incident on June 18, 2008, during which the Respondent admitted that he never notified the Department that on May 4, 2008, at JFK, Port Authority police officers had questioned him as a subject regarding the loss of a camera.

Police Officer Angelina Thomas

The Department called Police Officer Angelina Thomas as a rebuttal witness. Police Officer Thomas testified that she was never aware that the Respondent had placed Negm's camera inside her purse because the Respondent placed the camera into her purse and removed it from her purse without telling her.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent testified that he was appointed to the Department on July 1, 2004, and that he has a Bachelor's of Arts Degree from Miami University of Ohio which was awarded in May, 2004.

The Respondent recalled that when he and Thomas were standing in line at the cashier's counter at Burger King, Negm was directly in front of them and that Negm "took off running towards the gate area." The Respondent saw a camera on the counter. He heard the cashier at the register say, "Oh, that's a nice camera. I think I am going to hold on to it." The Respondent told the cashier that he "would return the camera to its owner" who "hadn't gone too far." The Respondent picked up the camera and the food

he had purchased. He then “walked fast” out of Burger King and “proceeded to the gate area in the direction” that Negm “had gone.” The Respondent “went toward the gate areas” but he was unable to spot Negm there. He then “backtracked” and “went back towards the Burger King area to see if” Negm “had gone there to track back where he might have left the camera” but he did not see Negm there. The Respondent then went to the gate area where the Respondent’s flight would be departing from “in the hope of finding” Negm “on my way” there. He “searched left and right to the gates around me” and looked for Negm there “for about quite a while.” The Respondent then placed the food he had purchased down on a seat in the waiting area near the gate where the Respondent’s flight would be departing from.

The Respondent had just sat down when Negm came running up to him. Negm “yelled” at the Respondent in a “hostile” manner, “Dude, you stole my camera! Give me my damn camera!” The Respondent testified that he told Negm, “I don’t have your camera.” The Respondent acknowledged that at the time he said this to Negm the camera was “sitting in my wife’s purse” because the Respondent had placed the camera into Thomas’ purse. The Respondent explained that he had lied to Negm that he did not have his camera because Negm had accused him of stealing his camera and because Negm was “aggressive” and “very hostile.” Negm then said that he was going to go back to the Burger King.

Thomas was not sitting with the Respondent during his conversation with Negm because she was “was handling tickets with the representative from the ticket people.” After Negm walked away, the Respondent told Thomas what had happened. Negm returned accompanied by Port Authority Police Officer Rogers. The Respondent testified

that he identified himself to the officer and asked if the two of them could step to the side away from Negm, who was “making faces,” and converse privately. The officer refused this request telling the Respondent “I want to get this resolved right here and right now.” When the officer asked the Respondent if he had the camera the Respondent answered in the negative. The Respondent explained that he had told the officer that he did not have Negm’s camera because the officer had refused to agree to the Respondent’s request that they step to the side away from Negm and converse privately and because the officer “persistently talked in front of the complainant.” The Respondent testified that the officer then told Negm, “He doesn’t have the camera. I don’t know what you want me to do.” The officer and Negm then “took off towards Burger King” together. The Respondent testified that he then “abandoned” the camera. He removed the camera from Thomas’ purse and threw the camera away by placing it into a trash receptacle.

The Respondent testified that he and Thomas boarded their airplane shortly thereafter but the officer came back, this time accompanied by a sergeant, and took him and Thomas off the airplane. The Respondent testified that he complied with the sergeant’s direction to remove all the items from his pockets. The Respondent also removed items from his carry-on bag and showed them to the sergeant. The Respondent did not tell the sergeant or anyone else that he placed the camera in a trash receptacle near Gate 10. The Respondent and Thomas then re-boarded the airplane and flew to their vacation in the Dominican Republic. The Respondent testified that he never had any intention to steal the camera or to use it during their vacation.

On cross-examination, the Respondent recalled that he threw the camera into the garbage before Negm returned accompanied by Port Authority Police Officer Rogers.

The Respondent testified that he “was very appalled” when Negm accused him of stealing his camera. When the Respondent was asked why he had not told Officer Rogers that he had thrown the camera into the garbage, the Respondent answered that he “didn’t feel comfortable talking” to him in front of Negm. The Respondent acknowledged that Rogers may have approached him twice and that Rogers “took my license along with my police ID” and wrote down his address. The Respondent stated that when he was taken off the airplane, he did not ask the sergeant if they could step aside so that he could speak to him privately and he did not tell him that he had placed the camera in a trash can.

On redirect examination, the Respondent stated that he never notified his command about this incident “because I didn’t think it was a police investigation I was a part of, my wife or myself.”

FINDINGS & ANALYSIS

Specification No. 1

The Respondent is charged with stealing property by wrongfully taking Negm’s camera without his permission or authority. The charge cites to the crime of Petit Larceny, Penal Law section 155.25, a class A misdemeanor.

The term “larceny” is defined in Penal Law section 155.05. Subdivision one of this section provides that “(a) person steals property and commits larceny when, with intent to deprive another of property or to appropriate the same to himself or a third person, he wrongfully takes, obtains or withholds such property from an owner thereof.” Subdivision two of this section provides that “(l)arceny includes a wrongful taking, obtaining or withholding of another’s property, with the intent prescribed in subdivision

one of this section, committed...(b)y acquiring lost property. A person acquires lost property when he exercises control over property of another which he knows to have been lost or mislaid...without taking reasonable measures to return such property to the owner.”¹

I find the Respondent guilty based on his own testimony and the testimony of Port Authority Police Officer Christopher Rogers who was not shown to have any reason to want to cause trouble for a fellow police officer by falsely reporting what the Respondent told him he had done with the camera.

The Respondent acknowledged that when he took possession of the camera inside Burger King he believed it to be lost property. I reject the Respondent’s unsupported claim that he took reasonable measures to return this lost property to Negm. I find it significant that the Respondent did not claim that he had gone back into the Burger King restaurant to inquire as to whether Negm had returned there looking for his camera. Neither did the Respondent claim that he had attempted to leave the camera with any Delta employee. Nor did the Respondent claim that he had asked anyone where the Lost and Found property office so that he could bring the camera there.

The Respondent admitted that at the time Negm approached him, he was not walking around the area just outside Burger King asking people whether anyone had lost a camera. Rather, he was sitting in the waiting area adjoining his departure gate. The Respondent also admitted that when Negm approached him, the camera was inside Thomas’ purse where the Respondent had placed it. The Respondent further admitted that he lied to Negm by denying that he had his camera and that he also lied to Officer Rogers when he denied that he had Negm’s camera.

¹ Penal Law section 155.05 (2)(b).

By failing to return the camera to Negm, the Respondent intentionally deprived Negm of his property. Even if I credited the Respondent's claim that Negm accused him in a hostile manner of stealing his camera, this would not justify or excuse the Respondent's action of intentionally depriving Negm of property that was rightfully his.

The Respondent asserted that he is not guilty of wrongfully taking Negm's camera because he never had the intent to permanently deprive Negm of his camera. This claim is belied by the Respondent's admission that, after Negm walked away from him, he retrieved the camera from Thomas' purse and dropped it into a trash can. By this act, the Respondent clearly demonstrated that he intended to permanently deprive Negm of his camera.

The Respondent's intent to permanently deprive Negm of his property is also established by the fact that he subsequently spurned two separate opportunities to come clean about the fact that he had tossed Negm's camera into a trash can. First, when Officer Rogers asked him if he had Negm's camera and, second, when the sergeant directed him to remove the contents of his carry-on.

The Respondent is found guilty.

Specification No. 2

It is charged that, having been involved in a police incident, the Respondent thereafter failed to report said incident to his Commanding Officer, as required.

The Respondent admitted that he never notified his commanding officer, or any unit of this Department, about the fact that New York Port Authority police officers had questioned him as a subject regarding a missing camera at JFK on May 4, 2008.

The Respondent argued that he was not required to notify his command since he did not consider himself to have been involved in a police incident “because I didn’t think it was a police investigation I was a part of, my wife or myself.” I reject the Respondent’s position because he admitted that Negm (who the Respondent referred to as “the complainant”) directly accused him of stealing his camera; that Officer Rogers questioned him about the camera in Negm’s presence; that Rogers took his license and Department ID; and that Rogers and a Port Authority police sergeant took him off the airplane and had him remove items from his pockets and his carry-on bag. All of these events belie the Respondent’s claim that “I didn’t think it was a police investigation I was a part of.”

The Respondent is found guilty.

Specification No. 3

The Respondent is charged with wrongfully and without just cause preventing or interfering with an official New York Port Authority investigation by falsely stating to Port Authority Police Officer Rogers that he had returned a camera to an employee at Burger King when the truth was that he had thrown the camera in the trash.

I find the Respondent guilty based on the testimony of Officer Rogers who was not shown to have any reason to lie about what the Respondent told him. Rogers recalled that when he asked the Respondent, “Where is the camera?” the Respondent answered, “Yes, I took the camera, but I left it with the manager at Burger King.” This testimony is consistent with the contemporaneous entry Officer Rogers made on the PANY&NJ police criminal complaint report that he prepared immediately after this incident in which

he wrote that the Respondent had told him: "I put the camera on the counter for the manager." (DX 1, inside box 56.).

The Respondent is found guilty.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 1, 2004. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent offered letters from Deputy Inspector Edward Britton and Captain Thomas McGrath regarding his police work and letters from Pastor Emanuewell Clay and Julian Goodman attesting to his good character.

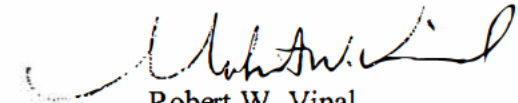
The compliments paid to the Respondent in these letters do not absolve the Respondent's extremely serious misconduct of intentionally depriving a civilian of his camera, lying to a Port Authority Police Officer about what he had done with the camera, which was found in the garbage where the Respondent had tossed it, and failing to report this police incident to his command as he was required to do. The Respondent's multiple acts of misconduct caused embarrassment to this Department and brought this Department into disrepute with another law enforcement agency.

The Respondent's actions here reflect poorly on his personal integrity and his character and his fitness to serve as a police officer. Also, this disciplinary case marks the second occasion on which the Respondent has been found guilty of Charges and

Specifications during his relatively brief tenure with this Department (see attached confidential memorandum). The Assistant Department Advocate recommended that the Respondent be dismissed from the Department.

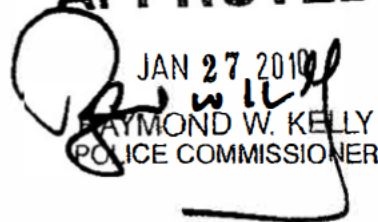
I recommend that the Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED



JAN 27 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DANTE THOMAS
TAX REGISTRY NO. 935839
DISCIPLINARY CASE NO. 84530/08

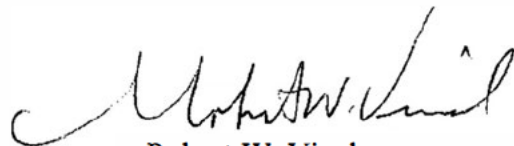
The Respondent received an overall rating of 4.5 on his 2007 annual performance evaluation, 4.0 on his 2006 annual evaluation and 4.5 on his 2005 evaluation. He has been awarded one Meritorious Police Duty medal and two Excellent Police Duty medals.

[REDACTED]

He has a prior formal disciplinary record. In 2007, he forfeited nine vacation days after he pleaded guilty to having failed to stop his personal motor vehicle, while driving off duty, and show his license and insurance card and to driving away from an accident scene after his vehicle had made contact with, and caused injury to, an individual. At the time of this accident (which occurred on December 7, 2004) the Respondent was a Probationary Police Officer assigned to the Police Academy.

In March, 2005, due to continued poor performance, he was placed in Level II Disciplinary Monitoring which ended in October, 2007.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials